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Summary of stakeholders' submissions on the United Republic of Tanzania*

Report of the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the periodicity of the universal periodic review and the outcome of the previous review.[1] It is a summary of 43 stakeholders' submissions[2] for the universal periodic review, presented in a summarized manner owing to word-limit constraints.[3] A separate section is provided for the contribution by the national human rights institution that is accredited in full compliance with the Paris Principles.

II. Information provided by the national human rights institution accredited in full compliance with the Paris Principles

2. CHRAGG highlighted developments including implementation of the Action Plan on Anti-Trafficking in Persons (2021-2024), the National Strategy to Eliminate Female Genital Mutilation (FGM) 2020/21-2024/25), Judiciary Strategic Plan 2020/2021-2024/2025, and the National Action Plan for the Rights and Welfare for Persons with Albinism (2024/2025-2027/2029),[4] and recommended that the United Republic of Tanzania:

(a) Enact legislation protecting human rights defenders;[5]

(b) Finalize the second national human rights action plan;[6]

(c) Repeal The Customary Law (Declaration) Order (GN. No. 436/1963) (No.4);[7]

(d) Strengthen the justice system, especially in rural areas;[8]

(e) Amend the legislation governing the National Electoral Commission to ensure transparency, and merit-based, non-partisan appointments of its officials;[9]

(f) Increase financing for water projects;[10]

(g) Increase the budget for the health sector, intensifying HIV and Malaria prevention campaigns, addressing stunting through multi-sectorial nutrition programmes

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targeting maternal and early childhood nutrition, and (4) recruiting health workers in underserved rural areas;[11]

(h) Increase the budget for the education sector;[12]

(i) adopt targeted interventions to address persistent income disparities and ensure equitable access to essential services;[13]

(j) Integrate a human rights-based approach in all anti-corruption policies;[14]

(k) Amend the Penal Code[15] to criminalize female genital mutilation (FGM); and rejuvenate the Zanzibar National Plan of Action to End Violence against Women and Children;[16]

(l) Amend the Law of Marriage Act in compliance with the decision of High Court,[17] and conduct awareness campaigns against early marriage and child labour;[18]

(m) raise awareness and understanding of disability.[19]

III. Information provided by other stakeholders

A. Scope of international obligations and cooperation with human rights mechanisms

3. Stakeholders noted that the United Republic of Tanzania had yet to ratify CAT; [20] Indigenous and Tribal Peoples Convention, 1989 (No. 169);[21] ICPPED;[22] and TPNW.[23]

4. EF recalled that at the previous review, the United Republic of Tanzania had not supported recommendations to issue a standing invitation to the Human Rights Council's special procedure mechanism, which had limited independent field assessments of the human rights situation in the country.[24]

B. National human rights framework

1. Constitutional and legislative framework

5. JS7 noted that Zanzibar is governed by the Constitution of the United Republic of Tanzania, but has its own President, legislature, court system, and penal code. Shari'a law was applied by courts to matters of succession in communities that generally follow Shari'a law and Muslims may bring cases before Islamic courts. All cases tried in Zanzibar's courts, apart from those involving Shari'a law and constitutional matters, may be appealed at the Court of Appeal of the United Republic of Tanzania on mainland Tanzania.[25]

6. ERF noted that in 2025, a prison bill had been introduced to transform prisons into modern correctional and rehabilitation institutions, improve detention conditions, expand the use of community service orders as an alternative to imprisonment for minor offenses, and implement a parole system.[26]

2. Institutional infrastructure and policy measures

7. JS26 stated that the National Human Rights Action Plan (2018-2022) had expired without implementation, and that the National Action Plan on Business and Human Rights (2025/26-2029/30) had yet to be launched, which underscored weak operationalization of policy commitments.[27]

8. JS14 noted that there was no specific national programme for comprehensive human rights education for public service officials and students and considered a relevant supported recommendation from the previous review to have not been implemented.[28]

C. Promotion and protection of human rights

1. Implementation of international human rights obligations, taking into account applicable international humanitarian law

Equality and non-discrimination

9. JS4 noted that although the Constitution guaranteed equality before the law and protection from discrimination, in practice significant gaps remained in the implementation of these formal legal protections, particularly in relation to persons of diverse sexual orientation, gender identity, gender expression and sex characteristics (SOGIESC).[29]

10. JS10 stated that the coexistence of parallel legal systems created ambiguity and perpetuated discrimination against women. Customary and religious laws influenced matters such as inheritance and property rights, which disadvantaged women.[30]

Right to life, liberty and security of person, and freedom from torture

11. JS28 recalled that at the previous review, the United Republic of Tanzania had not supported recommendations to abolish the death penalty. As no executions had been carried out since 1994, a de facto moratorium appeared to be in place, and death sentences had been commuted to life imprisonment through presidential pardons. However, the mandatory death penalty for the murder and treason as prescribed in the Penal Code required reform, as it removed judicial discretion and consideration of mitigating factors in sentencing proceedings, including mental health conditions.[31]

12. JS7 drew attention to reported cases of enforced disappearances, arbitrary detention, torture and extrajudicial killing of political actors, activists, journalists and protesters before, during, and after the October 2025 elections.[32] According to JS21, post-election protests had erupted in response to the exclusion of opposition candidates and alleged electoral irregularities.[33] JS5 noted reports of hundreds of deaths allegedly attributed to the police and unidentified security personnel, including victims who had posed no threat to public order or security.[34]

13. JS15 highlighted ongoing risks of torture and ill-treatment in police custody due to practices including unreliable and manipulatable detention registers, and detention beyond the legal time limits, which facilitated incommunicado detention, situations resembling enforced disappearances, and torture.[35]

14. JS1 highlighted reported attacks and killings of persons with albinism and the inadequate protection systems for them. It underscored that ACtHPR had found that persons with albinism had been subjected to targeted killings for ritual purposes.[36] Also, the use of shelters for housing persons with albinism had created conditions that violated the best interest of the child and there was therefore a need for a human rights-based family-centred protection framework.[37]

15. According to JS4, there had been no measurable progress in addressing violence against LGBTI persons since the previous review. Victims had often not reported incidents of violence due to fear of arrest, stigma and retaliation, and when such incidents had been reported, law enforcement officers had often failed to conduct effective investigations.[38]

16. JS28 described the conditions in prisons as deplorable, and highlighted overcrowding, poor sanitation, and insufficiency of food and other essential resources.[39]

Human rights and counter-terrorism

17. JS7 recalled that during the previous review, the United Republic of Tanzania had supported a recommendation to adopt a strategy and action plan to prevent radicalization and extremism. Although efforts had been made in that regard, no such strategy and plan had been published, while incidences of radicalism and extremism had continued to be reported. A 2022 investigation had revealed efforts to radicalize young Zanzibari men, some of whom subsequently disappeared. The widening intelligence and security gaps had undermined

efforts to effectively address terrorism and prevent violent extremism, while the country was emerging as a source of recruitment for jihadi networks.[40]

Administration of justice, including impunity, and the rule of law

18. JS17 stated that articles 109(1), 109(8), 110A, 112, 118 and 120A of the Constitution conferred on the Presidency extensive powers in relation to judicial appointments, tenure and removal. These provisions weakened institutional safeguards, increased the risk of executive influence and were inconsistent with international standards on judicial independence and separation of powers. Limitations on judicial independence contributed to violations of fair trial rights, particularly in politically sensitive cases.[41]

19. JS28 stated that fair trial rights had been eroded by the limited access to legal aid. Despite the Legal Aid Act, 2017, only a few indigent accused had received assistance. Also, vulnerable groups, such as juveniles, persons with disabilities, and individuals from marginalized communities were not guaranteed legal representation.[42] JS24 stated that legal aid services were not available in most rural regions, which left survivors of gender-based violence with no meaningful recourse.[43]

20. According to JS28, section 29 of the Evidence Act provided that a confession would not be excluded solely on the grounds of coercion unless the court was satisfied the coercion was likely to have caused a false admission of guilt. The admission of coerced confessions undermined the integrity of the justice system and risked entrenching a system that inadvertently incentivised human rights violations as a means of extracting evidence.[44]

21. ERF stated that a significantly high number of persons had been held in pro-longed pre-trial detention, awaiting the commencement of their trials.[45] JS15 added that the failure by courts to scrutinize prolonged unlawful detention, among other systemic failures, contributed to structural impunity.[46]

22. JS17 stated that, following the October 2025 election, over 1,700 persons had reportedly been held under investigation for non-bailable offences. The use of non-bailable offences in politically sensitive cases effectively removed judicial discretion and undermined the presumption of innocence.[47]

23. J17 stated that the Advocates Act permitted government actors to participate in disciplinary proceedings against lawyers, creating actual and perceived conflicts of interest, particularly in cases where such lawyers were engaged in litigation against the State. This practice violated paragraph 28 of the Basic Principles on the Role of Lawyers. [48] JS17 also highlighted reprisals against lawyers involved with human rights causes or associated with opposition political parties.[49]

24. JS27 stated that since 2021, accountability for police abuses had remained severely undermined by a combination of political interference and structural conflicts of interest, which resulted in impunity.[50]

25. JS2 state that although some law enforcement officials, prosecutors, and judicial personnel had received training on gender-based violence and cybercrime, there was no evidence of nationwide training on technology-facilitated gender-based violence. Consequently, many frontline actors lacked the expertise to identify and investigate such cases.[51]

Fundamental freedoms and the right to participate in public and political life

26. JS9 noted a decline in the freedoms of association, assembly, and expression,[52] while JS3 noted a decline in civic space and restrictions on digital rights and freedoms.[53]

27. EF noted that during the previous review, the United Republic of Tanzania had supported recommendations relating to the freedoms of expression, assembly and associations, and stated that the broad provisions in the legal framework, including the Media Services Act of 2016, the Cybercrimes Act of 2015, and the Statistics Act of 2015, had granted the Authorities sweeping powers to restrict such freedoms.[54]

28. JS5 stated that, notwithstanding the guarantees contained in article 18 of the Constitution protecting the freedoms of expression and opinion, limitation clauses had

systematically been broadly interpreted to restrict such freedoms on grounds including national security and public morality.[55] CPJ stated that the Authorities had relied on restrictive legislation and administrative measures to control the media, which had led to journalists facing intimidation, arrests and detention for their critical reporting.[56]

29. JS3 highlighted the enactment of legislation and regulations that restricted civic and digital freedoms, including the Media Services Act, as amended in 2023, and the Electronic and Postal Communications (Online Content) Regulations of 2020, as amended in 2022 and 2025, particularly through licensing requirements and content restrictions.[57] ERF stated that in May 2025, the Communications Regulatory Authority had shut down more than 80 000 websites, social media accounts, blogs, and online platforms.[58]

30. RVT underscored deterioration in the protection of human rights defenders, since the previous review. JS3 stated that human rights defenders, civil society organizations, journalists, online activists and bloggers, had been subjected to harassment, arrests, and prosecutions.[59]

31. JS21 stated that civil society organizations had faced burdensome compliance requirements and operated within a fragmented legal framework with some organizations falling under the Non-Governmental Organizations Act of 2002, as amended, while others the Societies Act. Compliance obligations were notably extensive.[60]

32. JS5 stated that the Non-Governmental Organizations Act of 2002, as amended in 2005 and 2019, granted the Authorities broad discretion to deny registration or impose restrictions on organizations.[61] JS4 stated that between 2023 and 2025, the Authorities had deregistered 14 organizations that had provided health and support services to LGBTI persons.[62]

33. ADF stated that freedom of religion or belief was unduly restricted under the Penal Code, particularly sections 125 and 129;[63] the Societies Act prescribed mandatory registration of religious organizations, with five-year renewal periods;[64] converts from Islam to Christianity in Zanzibar had experienced family rejection, and threats from community members opposed to their change of faith.[65]

34. JS7 stated that non-Muslims in Zanzibar were expected to comply with certain Islamic practices, including the wearing of the hijab in school; and that the Christian community had faced discrimination.[66]

35. JS7 recalled that at the previous review, the United Republic of Tanzania had supported recommendations on holding free and fair elections and highlighted widespread repression leading up to, during, and after the October 2025 elections. In its preliminary report, SADC[67] Election Observation Mission found that the elections had fallen short of its principles and guidelines,[68] as voters had not been able to fully express their democratic will. AUEOM[69] had raised similar concerns.[70]

36. JS21 stated that, in the period preceding the 2025 elections, the Authorities had systematically restricted opposition rallies and had curtailed the movement of members of opposition parties.[71] It also highlighted the banning and disqualification of candidates and political partes.[72] JS5 made similar observations and underscored that the Political Parties Act, amended in 2019, granted the Authorities broad powers, including the power to deregister political parties.[73]

37. JS21 alleged that, in Zanzibar, ballot papers and results sheets had been destroyed shortly after vote-counting, thereby preventing meaningful verification of the election results.[74]

38. While noting that internet penetration had reached 85 percent, RVT stated that rights to free expression and privacy had been subjected to State control. It highlighted the nationwide internet shutdown from 29 October to 3 November 2025, allegedly to prevent youth organizers from live streaming the violence perpetrated by the security forces.[75]

39. RVT underscored the restrictive regulatory environment for digital content and noted that individuals had been prosecuted for anti-government satire under the Cybercrimes Act of 2015. JS20 added that the Act enabled excessive surveillance without effective judicial oversight.[76]

Right to privacy

40. JS20 stated that the enactment of the Personal Data Protection Act No. 11 of 2022 established statutory rights and core principles for the handling of personal data. However, this positive trajectory was reversed in the lead up to the October 2025 elections, with the deployment of advanced surveillance apparatuses against political dissidents.[77]

Prohibition of all forms of slavery, including trafficking in persons

41. JS10 noted efforts to address child labour, including through the adoption of the National Strategy on the Elimination of Child Labour (2024/25-2028/29), but observed that child labour had remained widespread, particularly in agriculture, fishing, mining, and domestic work.[78]

Right to work and to just and favourable conditions of work

42. Noting the protection of labour rights through the enactment of Labour Laws (Amendments) Act of 2025, RVT stated that workers in the "gig economy" did not benefit from any statutory protections, leaving them without social security, health insurance, or accident safety nets.[79]

43. JS10 noted that although women had constituted about 80 percent of the labour force, they had been disproportionately represented in informal, low-income, and unpaid family work. There was also a gender wage gap.[80]

44. JS14 stated that unemployment remained the primary challenge for persons between the ages of 18 and 30 years. Youth had often experienced poor working conditions, unfair wages, and abuse in informal employment sectors.[81]

Right to social security

45. JS4 recalled that at the previous review, the United Republic of Tanzania supported a recommendation to implement social protection policies and stated that LGBTI persons had been discriminated against in accessing social protection programmes.[82]

Right to an adequate standard of living

46. JS9 state that there was a chronic shortage of affordable housing, which was fuelled by rapid population growth.[83]

47. Noting that the United Republic of Tanzania was ranked 91st out of 123 countries in the 2025 Global Hunger Index, ERF stated that access to food was hindered by poverty, rising food prices, and declining crop productivity due to climate change and droughts.[84]

Right to health

48. JS2 recalled that at the previous review, the United Republic of Tanzania had supported recommendations on the right to health, including women's health, and highlighted conditions that compromised both quality and dignity of care, including the prevalence of obstetric violence, shortages of medicines and medical supplies, and staffing shortages of health care workers, and overcrowded maternity wards.[85] JS8 noted that maternal mortality remained well above the Sustainable Development Goal target of fewer than 70 maternal deaths per 100,000 live births.[86]

49. JS8 stated that the criminalization of abortion in most circumstances had limited access to safe and legal services and had compelled many women and girls to resort to unsafe methods. [87] Family planning services had been limited by constraints in the health system, including contraceptive commodities. Also, social and cultural factors played a significant role in limiting contraceptive uptake.[88] JS6 noted that adolescents and young people faced judgemental attitudes from health care providers when seeking sexual and reproductive health services.[89]

50. JS6 stated that legal, policy, and programmatic measures aimed at improving access to sexual and reproductive health services had been introduced. However, their weak implementation continued to hinder access to these services. JS6 called for a focus on

effective implementation the measures, accountability, sustained investment in health systems, and a rights-based approach that promoted inclusion, dignity, and equality.[90]

51. JS6 noted that HIV transmission remained widespread and that stigma had remained a critical barrier to achieving universal access to HIV prevention, treatment, care, and support services; adolescent girls and young women had been disproportionately affected due to gender inequality and their limited ability to negotiate safe sexual practices; and individuals had been discouraged from accessing HIV prevention and treatment services due to criminalization of certain behaviours, including aspects of sex work and drug use.[91]

52. Stakeholders highlighted that: (a) healthcare providers' discriminatory attitudes towards LGBTI persons had contributed to mistrust and reduced utilization of health-care services; [92] (b) shortages of medicines, equipment and personnel in health facilities in rural areas had particularly affected Indigenous Peoples; [93] (c) persons with albinism faced a heightened risk of sun-induced skin damage and skin cancer, yet many of them had not received sunscreen lotions;[94] and (d) the Zanzibar Drug Control and Prevention Authority Act of 2021 adopted a punitive rather than health-based approach to drug use and consequently, drug use was not treated as a health condition.[95]

Right to education

53. JS12 stated that the national education system should transition towards a technology-driven learning environment. It noted that the strategic roadmap presented in the Education Sector Development Plan (ESDP) 2025/26-2029/30 had been designed to comprehensively reform the education system and to address infrastructure deficits and revise the curriculum to meet the demands of a technology-driven economy, including by providing students with access to computers, projectors and modern laboratory equipment.[96]

54. While noting efforts to implement the fee-free policy at both primary and secondary levels, JS14 expressed concern that families were still required to make contributions to support school operations and the acquisition of learning materials.[97]

55. Stakeholders underscored the shortage of classrooms which resulted in overcrowded learning environments, the lack of basic furniture, and a shortage of teaching staff.[98]

56. While highlighting that progress had been made in increasing access to education, JS10 noted: (a) continuing barriers to education for vulnerable groups, including children with disabilities and children with albinism; (b) weak implementation of inclusive education policies; (c) chronic under-resourcing of the education sector; and (d) low transition rates from primary to secondary education and low completion rates at the secondary level.[99]

57. AcAs stated that weak institutional and policy coordination, underfunding, and inadequate infrastructure and teacher support, had restricted access to quality education for children with disabilities.[100] Noting the adoption of the National Strategy for Inclusive Education 2021/22-2025/26, GERG underscored the need to strengthen its effectiveness and considered a relevant recommendation from the previous review to have been only partially implemented.[101]

58. JS1 stated that children with albinism often required reasonable accommodation for low vision to ensure equal access to education and recommended ensuring access to spectacles and low-vision aids, large-print and high-contrast learning materials, seating and lighting adjustments, teacher training on low vision, and school-level accommodation plans for learners with albinism.[102]

59. JS2 recalled that, during the previous review, the United Republic of Tanzania had supported recommendations aimed at improving access to education for pregnant schoolgirls and adolescent mothers. However, existing laws and policies neither adequately addressed, nor sufficiently facilitated, their re-entry into the education system. Although the re-entry guidelines allowed girls to return to school within two years, several provisions remained restrictive, and implementation depended heavily on the discretion, capacity and willingness of individual schools and educators.[103]

60. JS29 stated that access to comprehensive sexuality education remained limited and, consequently, many young people lacked accurate knowledge about contraception, reproductive health and HIV prevention.[104]

Cultural rights

61. JS13 expressed concern over the restrictions on the right to artistic expression.[105] It noted that artists and content creators were required to submit video content for pre-approval;[106] and that the Film Board and the Minister responsible for culture were granted sweeping and discretionary powers to censor or ban films and stage plays.[107]

Development, the environment, and business and human rights

62. JS12 referred to recommendations supported during the previous review and highlighted that, although progress in national development had been made, the full realization of robust infrastructure and broad-based economic empowerment remained an ongoing endeavour, noting that the Tanzania Development Vision 2050 recognized the need for sustained efforts to ensure inclusive growth and access to essential services throughout the country.[108]

63. JS9 noted the steps that had been taken to address climate change, including through the adoption of the National Climate Change Response Strategy, 2021-2026, but underscored that the Strategy did incorporate traditional knowledge and human rights principles, particularly with regard to ensuring the free, prior, and informed consent of communities affected by climate-related projects. In addition, women, youth, persons with disabilities, and local communities, were under-represented in climate-related decision-making processes.[109]

2. Rights of specific persons or groups

Women

64. Noting inter alia the National Plan of Action to End Violence Against Women and Children for 2024-2029, GERG stated that critical gaps remained in legal protections, enforcement mechanisms, and in access to justice. [110] GERG considered a relevant supported recommendation from the previous review to have been partially implemented.[111]

65. JS30 underscored that there was no comprehensive legislation on gender-based violence and that the existing legal framework remained fragmented and incomplete.[112] JS14 noted the absence of definitions of “marital rape” and “family violence” in national policy, as well as limited education and economic independence, increased women’s vulnerability to abuse and limited their ability to seek justice or access necessary support services.[113]

66. JS2 recalled that during the previous review, the United Republic of Tanzania had supported recommendations to address FGM and noted the criminalization of FGM under the Sexual Offenses Special Provisions Act. However, the Act restricted criminal liability to parents, guardians, or other custodial figures, which discouraged reporting, as victims were unwilling to testify against relatives.[114]

67. JS2 stated that legislation addressing technology-facilitated gender-based violence remained inadequate and did not specify key forms of technology-facilitated gender-based violence, such AI generated sexualized content.[115]

Children

68. JS25 noted the establishment of children’s councils at village-level and called for adequate funding to ensure their effective functioning.[116]

69. JS2 noted that despite supporting relevant recommendations at the previous review which conveyed the commitment to address child marriage, the Law of Marriage Act, which allowed girls as young as 14 years of age to marry, had not been amended. [117] GERG recalled that in 2016, the High Court had declared unconstitutional relevant provisions of the Act and had ordered its amendment, a decision that had been upheld on appeal.[118] JS14 noted that child, early and forced marriage had persisted due to poverty and deep-rooted cultural traditions.[119]

70. JS10 expressed concern about violence against children, noting that corporal punishment remained lawful and widely practices in homes and schools;[120] It also highlighted the increasing risks in digital environments, including children's exposure to online sexual abuse, without their awareness.[121]

Older persons

71. JS19 stated that while Zanzibar had established a specific legal framework for older persons, mainland Tanzania still lacked a comprehensive standalone law on the rights of older persons, resulting in fragmented protection and limited policy coherence.[122]

Persons with disabilities

72. JS9 highlighted the adoption of the National Assistive Technology Strategy (2024-2027) to provide wheelchairs, hearing aids and other devices; implementation of a five-year strategic plan to train health workers on disability-sensitive care; the establishment of a national business and disability network to champion workplace inclusion; and the availability of interest-free loans to persons with disabilities for livelihood activities. It noted that a draft national disability policy had yet to be finalized.[123]

Indigenous Peoples and minorities

73. KOO stated that the Maasai and other pastoralist and hunter gatherer communities, including the Barbaig, Akie, and Hadzabe, satisfied internationally accepted criteria for recognition as Indigenous Peoples, as reflected in, inter alia, UNDRIP. However, the United Republic of Tanzania did not recognize Indigenous Peoples as distinct rights holders in the Constitution or legislation.[124]

74. JS14 stated that indigenous communities remained socially excluded and politically underrepresented. Their nomadic lifestyles prevented them from accessing basic health and education services.[125]

75. RVT highlighted a significant deterioration in land and pastoral rights due to the systematic alienation of ancestral lands for conservation and carbon-credit investments.[126] JS23 stated that since the previous review, Indigenous Maasai pastoralists had faced increasing land alienation through reclassification, conservation expansion, militarization, and carbon market interventions;[127] and emphasized the lack of alignment of conservation, climate, and development policies with human rights obligations.[128]

76. JS18 stated that the planned eviction of pastoralists from at least 25 villages in Ngorongoro Division had undermined statutory and customary land tenure, lacked meaningful consultation, and violated the requirement of free, prior and informed consent. The expansion of the Ruaha National Park under the REGROW project led to the displacement of thousands of people, often without adequate consultation, compensation, or resettlement planning.[129]

77. JS7 stated that in 2022, and without consultation with indigenous groups, 1,500 sq. kms of land in Liliondo, Ngorongoro District had been designated as a game reserve, the Pololeti Game Reserve, and that the primarily pastoral Maasai residents had been prevented from living on, grazing cattle on, or seeking water in this demarcated area.[130]

78. JS22 stated that the cumulative effect of the recommendations of the two Presidential Commissions launched in 2025 to investigate land issues (land commission) and to assess the relocation process (relocation commission) in the Ngorongoro Conservation Area could result in targeted displacement of a single ethnic community, and their findings had failed to acknowledge documented contributions of Maasai rotational grazing, and seasonal land management, among others. It called for a pause in the implementation of the recommendations until an independent review is conducted in line with international human rights standards.[131]

Lesbian, gay, bisexual, transgender and intersex persons

79. JS4 noted that consensual same-sex relations remained criminalized under the laws of mainland Tanzania[132] and Zanzibar,[133] and that the enforcement of these laws had contributed

to stigma, discrimination, arbitrary arrest and restricted access to justice and essential services.[134]

80. JS16 stated that intersex persons, particularly children, remained largely invisible in law, policy and public discourse. It noted the absence of explicit protection against discrimination; difficulties arising from the absence of administrative procedures accommodating intersex variations; the risk of irreversible medical interventions being performed without informed consent and in the absence of clear national clinical guidelines; limited awareness of intersex variations among health-care workers, educators, civil registrars and policy makers; and the psychological impact of stigma, secrecy, and medical interventions.[135]

Migrants, refugees and asylum-seekers

81. SU highlighted concerns about respect for the principle of non-refoulment, delays in processing asylum applications, and strict camp policies that limited freedom of movement of refugees. [136] ERF noted that the Tanzanian National Commission for Asylum Decisions had not convened since 2022, thereby hindering the asylum status determination process.[137]

Stateless persons

82. JS14 welcomed the provision of free birth registration and the progress that had been made in decentralizing the system but noted that children not born in health facilities faced barriers to birth registration.[138]

Notes

[1] A/HRC/49/13, A/HRC/49/13/Add.1, and A/HRC/49/2.

[2] The stakeholders listed below have contributed information for this summary; the full texts of all original submissions are available at: www.ohchr.org (one asterisk denotes a national human rights institution with A status).

Civil society

Individual submissions:

AcAs	AccessibilityAtlas, Jersey City (United States of America);
ADF	ADF International, Geneva (Switzerland);
C-FAM	Center for Family and Human Rights, New York (United States of America);
CPJ	Committee to protect Journalists, New York (United States of America);
ECLJ	European centre for Law and Justice, Strasbourg (France);
EF	El-Hak Foundation for Freedom of Opinion and Expression and Human Rights, Cairo (Egypt);
ERF	Elizka Relief Foundation, (Ghana);
GERG	Global Engagement Research Group - Kansai Gaidai University, Hirakata City, Osaka (Japan);
ICAN	The International Campaign to Abolish Nuclear Weapons, Geneva (Switzerland);
KOO	Koordinierungsstelle der österreichischen Bischofskonferenz, Vienna (Austria);
RVT	Research Voice Tanzania, Dar-es-Salaam, United Republic of Tanzania;
SU	Solidarity & Unity, Amsterdam (Netherlands).

Joint submissions:

JS1	Africa Albinism Network, and Tanzania Albinism Society, Dar es Salaam (United Republic of Tanzania) (Joint Submission 1);
JS2	The Legal Human Rights Centre and The Advocates for Human Rights, Minneapolis (United States of America) (Joint Submission 2);
JS3	Collaboration on International ICT Policy for East and Southern Africa, The Pan African Lawyers Union, and Jaami Africa (Joint Submission 3);

JS4	Federatie van Nederlandse Verenigingen tot Integratie Van Homoseksualiteit - COC Nederland, Amsterdam (Netherlands), Pan Africa ILGA, Johannesburg (South Africa) and Sexual Minorities Tanzania, Dar es Salaam (United Republic of Tanzania) (Joint Submission 4);
JS5	CIVICUS: World Alliance for Citizen Participation, Johannesburg (South Africa), East and Horn of Africa Human Rights Defenders Project, Tanzania Human Rights Defenders Coalition, and International Service for Human Rights (Joint Submission 5);
JS6	Crisis Resolving Centre, Dar-es-Salaam (United Republic of Tanzania), Coalition for Women Human Rights Defenders Tanzania, Women Action on Eco-Health and Legal Rights, Tanzania Centre for Economic and Social Rights, Arusha Women Legal Aid and Human Rights Organization, Zanzibar Human Rights and Legal Organization, and Songambele Initiative (Joint Submission 6);
JS7	CSW UK (Christian Solidarity Worldwide), Surry (United Kingdom of Great Britain and Northern Ireland) and CSW Nigeria (Joint Submission 7);
JS8	Coalition for Women Human Rights Defenders Tanzania, Dar-es-Salaam (United Republic of Tanzania), Coalition for Women Human Rights Defenders Tanzania, Teens Corridor Organization, Jumuiya Ya Maendeleo Ya Elimu Ya Watoto Pemba, Tanzania Child Welfare, Center against Gender Based Violence Tanzania, Young and Alive Initiative, Crisis Resolving Center, Macho Kwa Jamii, Women Action on Eco-Health and Legal Rights, Tanzania Centre for Economic and Social Rights, Arusha Women Legal Aid and Human Rights Organization, Women's Promotion Centre, Women Woke Up, Safe Mother and Children Central Tanzania, Practices for Girls and Women Career Development Organization, Zanzibar Human Rights and Legal Organization, Songambele Initiative, Safe Island for Women and Children – Dodoma, Hope for Youth Development Mwanza, and Tanzania Community Health Information and Support (Joint Submission 8);
JS9	Evangelical Lutheran Church in Tanzania, Arusha (United Republic of Tanzania) and Lutheran World Federation (Joint Submission 9);
JS10	Edmund Rice International Limited, Geneva (Switzerland), VIVAT International, and Marist International Solidarity Foundation (Joint Submission 10);
JS11	Frontline AIDS, and The Advocates for Human Rights (Joint Submission 11);
JS12	Marist International Solidarity Foundation, Marist Brothers – Province of Africa Central East, and Solidaridad, Educación y Desarrollo (Joint Submission 12);
JS13	Freemuse, Asker (Norway), and Selam (Joint Submission 13);
JS14	IIMA - Istituto Internazionale Maria Ausiliatrice delle Salesiane di Don Bosco, Veyrier (Switzerland), VIDES International – International Volunteerism Organization for Women, Education and Development, and Daughters of Mary Help of Christians, Province of East Africa (FMA-AFE) – United Republic of Tanzania (Joint Submission 14);
JS15	Change Africa Trust, and World Organization Against Torture, Geneva (Switzerland);
JS16	Tanzania Voice of Humanity, Children Education Society, Centre for Child Social Justice, and Pan Africa ILGA (Joint Submission 16);
JS17	Pan African Lawyers Union, Arusha (United Republic of Tanzania) and Tanganyika Law Society, Dar es Salaam (United Republic of Tanzania) (Joint Submission 17);
JS18	Pastoralists' Indigenous Non-Governmental Organizations Forum, The Indigenous Peoples Rights International, Land Right Research Institute- HAKIARDHI, Traditional Ecosystems Survival Tanzania, Tanzania Land Alliance, Pastoral Women Council, Mainyoito Pastoralists Integrated Development Organization, Ujamaa

	Community Resource Team, and Parakuyo Indigenous Community Development Organization (Joint Submission 18);
JS19	Tanzania Rural Development Forum, Kijani Consult Organisation, Nguruka Development Agency, Tanzania Bora Initiative, Haki Rasilimali, Mulika Tanzania, African Leadership Initiative, Action for Change, SAHRiNGON Tanzania Chapter, Tanzania Media Women's Association, Enlighten Girls Foundation, Community Hands Foundation; Africa Child Foundation Mission of Tanzania, Tambua Utu Foundation, Dayspring Foundation, Eco Scope Foundation, HAKI MAKAZI, Umoja wa Wawezeshaji Kioo, Pemba Child Rights Environmental and Malaria Control Organization, Shirika la Usawa wa Kijinsia Tanzania; Himiza Development Organization, Shirika: Shirika la Haki za Binadamu Nandagala, Nugget Development in Tanzania; Community development for all, FOCUS Tanzania; Tanzania community rights organization, Sustainable Participatory, Intervention for Development, The Right Way, WiLDAF, Jumuiya Ya Maendeleo Ya Elimu Kwa Watoto Pemba, Kijana Amka Wajibika Organization; Zanzibar Climate Change Alliance, Jumuiya Ya Kuendeleza Ufugaji Nyuki Na Uhifadhi Wa Mazingira Ya Bahari Pemba, SMCCT, and Culture and Development East Africa (Joint Submission 19);
JS20	Uproar, University of Birmingham, Freedom of Expression Hub, and Tech & Media Convergency (Joint Submission 20);
JS21	Hivos-Humanist Institute, Den Haag (Netherlands) and Jamii Africa (Joint Submission 21);
JS22	Pastoralists Indigenous Non-Governmental Organizations Forum - PINGOs Forum; Land is Life, and The Indigenous Peoples Law and Policy Program at the University of Arizona College of Law (Joint Submission 22);
JS23	Society for Threatened Peoples on behalf of: Bischöfliches Hilfswerk Misereor e.V., Coopération internationale pour le développement et la solidarité, Federazione degli organismi di volontariato internazionale di ispirazione cristiana, FIAN Germany, FINAL Governance, Foundation for Empowering Local Communities Initiative, KIBANDA sable, Koordinierungsstelle der österreichischen Bischofskonferenz, Maasai International Solidarity Alliance, Maasai Pastoralist Development Organization, Maryknoll Office for Global Concerns, Pastoral Women Council, Pastoralist & Indigenous NGO'S Forum, Survival International, Tanzania Human Rights Defendants Coalition; Traditional Ecosystems Survival Tanzania, Ujamaa Community Resource Team, and Welthaus Diözese Graz-Seckau (Joint Submission 23);
JS24	Rise Up Integrity for Human Support, Tanzania Women Journalists Advocates for Children Rights, Free Child Foundation, Organization for Medical Outreach to Communities, Himiza Development Organization, The Future Shine Initiatives, Mtwara Economic Rights Organization for Disabled, Shirika la Haki za Binadamu Nandagala, Health Outreach Tanzania, Tanzania Foundation for the New Generation Organization, Dynamic Women For Productive Initiative, Sauti ya Mtoto Foundation, Every Women, and Tanzania Child Welfare, Dar es Salaam (United Republic of Tanzania) (Joint Submission 24);
JS25	Tanzania Child Rights Forum, Legal and Human Rights Centre, Save the Children Tanzania, and Tanzania Human Rights Defenders Coalition (Joint Submission 25);
JS26	Legal and Human Rights Centre, Tanzania Human Rights Defenders Coalition, and Save the Children Tanzania (Joint Submission 26);
JS27	Redress, London, (United Kingdom of Great Britain and Northern Ireland), Change Africa Trust, Centre for Strategic Litigation, International Rehabilitation Council for Torture Victims, The International Federation of ACATs, Omega Research Foundation, The

	Pan African Lawyers Union, World Organization Against Torture, and The United Against Torture Consortium (Joint Submission 27);
JS28	Reprieve, The Advocates for Human Rights, The World Coalition Against the Death Penalty, Legal and Human Rights Centre, The Children Education Society, The Justice and Strategic Litigation Centre, Women Aid and Criminal Justice, The East Africa Law Society, and Tanzania Anti-Human Trafficking and Legal Initiatives (Joint Submission 28);
JS29	Teens Corridor Organization, Coalition for Women Human Rights Defenders Tanzania, Jumuiya Ya Maendeleo Ya Elimu Ya Watoto Pemba, Tanzania Child Welfare, Young and Alive Initiative, Safe Mother and Children Central Tanzania, and Tanzania Community Health Information and Support (Joint Submission 29);
JS30	Women's Promotion Centre, Coalition for Women Human Rights Defenders Tanzania, Center against Gender Based Violence Tanzania, Macho Kwa Jamii, Women Woke Up, Practices for Girls and Women Career Development Organization, Songambele Initiative, and Hope for Youth Development Mwanza (Joint Submission 30).

National human rights institution:

CHRAGG	The Tanzania Commission for Human Rights and Good Governance.

[3] The following abbreviations are used in UPR documents:

ICERD	International Convention on the Elimination of All Forms of Racial Discrimination
ICESCR	International Covenant on Economic, Social and Cultural Rights
OP-ICESCR	Optional Protocol to ICESCR
ICCPR	International Covenant on Civil and Political Rights
ICCPR-OP 1	Optional Protocol to ICCPR
ICCPR-OP 2	Second Optional Protocol to ICCPR, aiming at the abolition of the death penalty
CEDAW	Convention on the Elimination of All Forms of Discrimination against Women
OP-CEDAW	Optional Protocol to CEDAW
CAT	Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment
OP-CAT	Optional Protocol to CAT
CRC	Convention on the Rights of the Child
OP-CRC-AC	Optional Protocol to CRC on the involvement of children in armed conflict
OP-CRC-SC	Optional Protocol to CRC on the sale of children, child prostitution and child pornography
OP-CRC-IC	Optional Protocol to CRC on a communications procedure
ICRMW	International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families
CRPD	Convention on the Rights of Persons with Disabilities
OP-CRPD	Optional Protocol to CRPD
ICPPED	International Convention for the Protection of All Persons from Enforced Disappearance
TPNW	Treaty on the Prohibition of Nuclear Weapons
UNDRIP	United Nations Declaration on the Rights of Indigenous Peoples
ACtHPR	African Court on Human and Peoples' Rights

[4] CHRAGG, pp. 8, 11, and 12.
[5] Ibid., p. 9.
[6] Ibid., p. 4.
[7] Ibid., p. 9.
[8] Ibid., p. 8.
[9] Ibid., p. 8.
[10] Ibid., p. 6.
[11] Ibid., pp. 5–6.
[12] Ibid., p. 5.

[13] Ibid., p. 4.
[14] Ibid., p. 4.
[15] The Penal Code, Chapter 16 of the Laws of Tanzania (Cap. 16).
[16] CHRAGG, p. 11.
[17] See Rebeca Z. Gyumi v. Attorney General, Miscellaneous Civil cause No. 5 of 2016, as confirmed by the confirmed by the Tanzania Court of Appeal, Civil Appeal No. 204 of 2017.
[18] CHRAGG, p. 12.
[19] Ibid., p. 10.
[20] JS4, para. 19. JS4 made recommendations (p. 20, para. 7.4); JS14, para. 7; JS15, p. 2. JS15 made a recommendation (p. 6); and JS18, p. 1, JS27, p. 3. JS27 made recommendations (p.3) See also JS26, para. 4.3.1.
[21] JS18, p. 1, and JS22, para. 12. JS22 made a recommendation (para. 60(a)(1).
[22] JS27, p. 3. JS27 made a recommendation (p. 3) ICCPR-OP2 (JS28, p. 7. JS28 made a recommendation (p. 15).
[23] ICAN, p. 1. ICAN made a recommendation (p. 1).
[24] EF, para. 13, referring to A/HRC/49/13, para. 147.34 (Latvia), para. 147.35(Maldives), and para. 147.36 (State of Palestine), and A/HRC/49/13/Add.1.
[25] JS7, para. 41.
[26] ERF, p. 1.
[27] JS26, p. 9.
[28] JS14, para. 15, referring to A/HRC/49/13, para. 145.18 (Zimbabwe). JS14 made a recommendation (para. 16(d).
[29] JS4, paras. 8 and 9. JS4 made a recommendation (p. 19, para. 7.2).
[30] JS10, paras. 66, 71 and 78. JS10 made a recommendation (para. 82). See also JS19, p.4. JS19 made recommendations (p. 4).
[31] JS28, pp. 4, 6, 7 and 10. JS28 made recommendations (p. 16).
[32] JS7, para. 5, JS7 made recommendations (paras. 52 and 57). See also EF, para. 14. EF made a recommendation (para. 39); JS15, p.3. JS15 made recommendations (p. 5); and RVT, paras. 12 and 13. RVT made recommendations (p. 8).
[33] JS21, para. 2.3.7. JS21 made a recommendation (para. 4.1.5.1).
[34] JS5, para. 5.4.
[35] JS15, p. 3. JS15 made recommendations.
[36] JS1 referred to the judgment of 5 February 2025 by the African Court on Human and Peoples' Rights in the case of the Centre for Human Rights and Others v. United Republic of Tanzania(Application No. 019/2018).
[37] JS1, p. 10. JS1 made recommendations (pp. 12–13). See also ECLJ, paras. 3, and 11–13. ECLJ made a recommendation (para. 21); EF, para. 27; JS14, para. 25. JS14 made a recommendation (para. 28(a); and RVT, para. 15.
[38] JS4, paras, 13 and 14.
[39] JS28, pp. 10–11. JS28 made recommendations (p. 16).
[40] JS7, paras. 48–51.
[41] JS17, paras. 14 and 42–44. JS17 made recommendations (para. 60). See also JS24, para. 3. JS24 made a recommendation (para. 17(c).
[42] JS28, pp. 9 and 13. JS28 made a recommendation (p. 17).
[43] JS24, para. 16. JS24 made a recommendation (para. 17(a).
[44] JS28, pp. 12–13.
[45] ERF, p. 1.
[46] JS15, p. 6. JS15 made recommendations (p. 6).
[47] JS17, paras. 37 and 39. JS17 made a recommendation (para. 57). See also RVT, para. 13.
[48] Ibid., para. 20 and 22.
[49] Ibid., paras. 16 and 17.
[50] JS27, p. 14.
[51] JS2, para. 24. JS2 made recommendations (p. 10).
[52] JS9, p. 9. JS9 made recommendations (p. 10).
[53] JS3, para. 15. See also JS19, p. 3.
[54] EF, paras. 16 and 17, referring to A/HRC/49/13, para. 147.95 (Timor-Leste), para. 147.96 (Belgium) and para. 147.105 (Republic of Korea) and A/HRC/49/13/Add.1. EF made a recommendation (para. 41).
[55] JS5, paras. 4.2 and 4.3.
[56] CPJ, paras. 11, 24, and 26. CPJ made recommendations (paras. 36–38). See also JS20 paras. 15 and 16. JS20 made recommendations (pp. 15–16); JS21, para. 2.4.5; JS18 p. 7; and JS20, para. 24.

[57] JS3, paras. 16–19, 26. JS3 made recommendations (pp. 11–12). See also CPJ, paras. 17 and 18. CPJ made recommendations (paras. 36–38); JS5, paras. 4.5–4.7; JS19, p. 6, and JS20, paras. 28 and 29.
[58] ERF, p. 2.
[59] RVT, para. 7 and JS3, para. 15. See also ERF, p. 2; JS15 (p.4); JS26, pp. 11–12. JS26 made recommendations (p. 12); and JS27, pp. 3, 6, and 7.
[60] JS21, paras. 2.2.2–2.2.6. JS21 made recommendations (paras. 4.1.2–4.1.4.2.).
[61] JS5, para. 2.3. JS5 made recommendations (para. 6.1).
[62] JS4, para. 24. JS4 made recommendations (p. 20, para. 7.6).
[63] ADF, para. 8. ADF made a recommendation (para. 33 (a).
[64] Ibid., paras. 11 and 12. ADF made a recommendation, para. 33(b).
[65] Ibid., para. 24. ADF made a recommendation (para. 33(c).
[66] JS7, paras. 42 and 43. JS7 made recommendations (paras. 59 and 60).
[67] Southern African Development Community.
[68] SADC Principles and Guidelines Covering Democratic Elections.
[69] African Union Election Observation Mission.
[70] JS7, paras. 5 and 17, referring to A/HRC/49/13, para. 147.106 (United States of America) and para. 147.107 (Sweden), and A/HRC/49/13 Add.1. JS7 made recommendations (paras. 53 and 56). See also JS9, p. 9; EF, para. 15.
[71] JS21, para. 2.3.3. See also, JS27, p. 8.
[72] Ibid., para. 2.2.8–2.2.10. JS21 made a recommendation (para. 4.1.4.4).
[73] JS5, para. 2.5. See also ERF, p. 3.
[74] JS21, para. 2.3.10.
[75] RVT, para. 16. RVT made recommendations (p. 8). See also JS21, para. 3.3; and JS27, p. 10.
[76] Ibid., para. 18, RVT made recommendations (p. 8). JS20, para. 32. JS20 made recommendations (pp. 15–16).
[77] JS20, paras. 11, 12, 57 and 58. JS20 made recommendations (p. 16). See also JS3, paras. 8 and 33. JS3 made recommendations (pp. 12–13).
[78] JS10, para. 45. JS10 made recommendations (paras. 54 and 55). See also JS26, p. 4. JS26 made a recommendation (para. 2.3.9).
[79] RVT, para. 10.
[80] JS10, paras. 74 and 75
[81] JS14, paras. 29 and 30. JS14 made recommendations para. 31.
[82] JS4, para. 45, referring to A/HRC/49/13, para. 145.61 (Nepal).
[83] JS9, p. 8. JS9 made recommendations (p. 8). See also ERF, p. 5.
[84] ERF, pp. 4–5.
[85] JS2, paras. 6–8, referring to A/HRC/49/13, para. 147.128 (Norway), para. 145.67 (Cuba), para. 145.68 (Djibouti), para. 145.69 (Sri Lanka), para. 145.72 (Burkina Faso), para. 145.73 (Lesotho), and para. 147.42 (Malaysia), and A/HRC/49/13/Add.1. JS2 made recommendations (p. 9). See also JS8, para. 43. JS8 made recommendations (paras. 55 and 58)
[86] JS8, paras. 22 and 38. See also GERG, paras. 17 and 21. GERG made a recommendation (para. 22 (e).
[87] Ibid., para. 23. JS8 made a recommendation (para. 59). See also C-Fam, paras. 5, 11 and 16. C-Fam made recommendations (para. 17 and 18).
[88] Ibid., paras. 31 and 32. JS8 made recommendations (paras. 51 and 55).
[89] JS6, para. 27. JS6 made a recommendation (para. 42).
[90] JS6, paras. 19, 36, 39. JS6 made recommendations (para. 41, 45 and 50). See also JS24, para. 20. JS24 made a recommendation (para. 21(b).
[91] JS6, paras. 31, 32. JS6 made recommendations (paras. 43, 44, and 48). See also JS11, para. 22. JS11 made recommendations (para. 33).
[92] JS4, paras. 39 and 41. JS4 made recommendations (p. 20, para. 7.5)
[93] JS22, para. 22.
[94] JS1, p. 9. JS1 made recommendations (p. 11).
[95] J11, paras.19 and 20. JS11 made a recommendation (para. 31).
[96] JS12, paras. 12, 16 and 19. JS12 made recommendations (para. 23).
[97] JS14, paras. 8 and 9. JS14 made a recommendation (para. 16 (c).
[98] JS22, para. 35, JS25, p. 4, ERF, p. 4, JS12, paras. 12 and 17; JS12 made recommendations (para. 23); and JS14, para. 10.
[99] JS10, paras. 3 and 14–24. JS10 made recommendations (paras. 24–32, 53, 56 and 57).
[100] AcAs, p. 8.
[101] GERG, para. 15.
[102] JS1, p. 8. JS1 made recommendations (p. 12).

[103] JS2, paras. 15 and 16, referring to A/HRC/49/13, para. 145.90 (Italy), para. 145.99 (Spain), para. 146.9 (Austria), para. 147.44 (Burkina Faso), para. 147.109 (Uganda), ¶147.117 (Finland), para. 147.122 (Australia), para. 147.123 (Belgium), para. 147.124 (Canada), para. 147.125 (Ireland), para. 147.126 (Malawi), para. 147.127 (Mexico), para. 147.128 (Norway), para. 147.129 (Slovenia), para. 147.130 (Germany), and para.146.7 (Lesotho), and A/HRC/49/13/Add.1. JS2 made recommendations (pp. 9–10). See also EF, para. 21; JS26, p. 4. JS26 made a recommendation (para. 2.3.6); and JS29, para. 34. JS29 made a recommendation (para. 39).

[104] JS29, para. 26. JS29 made a recommendation (para. 40).

[105] JS13, para. 20. JS13 made recommendations (para. 36).

[106] Ibid., paras. 16 and 17, citing the Films and Stage Plays Act 1976.

[107] Ibid., para. 22, citing the Films and Stage Plays Act 1976.

[108] JS12, para. 43, referring to A/HRC/49/13, para. 145.25 (China), para. 145.60 (Malawi), para. 145.64 (India), and 145.26 (Syrian Arab Republic). JS12 made recommendations (para. 46).

[109] JS9, p. 14. JS9 made recommendations (p. 15). See also JS19, p. 10; JS25, p. 2; and JS26, p. 16. JS26 made recommendations (pp. 16–17).

[110] GERG, para. 16. See also RVT, para. 14; JS19, pp. 3–4; and JS26, p. 2. JS26 made recommendations (paras. 1.3.5, 2.3.1, and 2.3.2).

[111] GERG, para. 16, referring to A/HRC/49/13, para. 145.89 (Ghana).

[112] JS30, paras. 5 and 35. JS30 made recommendations (paras. 47, 48 and 54.

[113] JS14, paras. 7 and 23. JS14 made recommendations (para. 24 (b) and (c).

[114] JS2, paras. 1–4, referring to A/HRC/49/13, para. 145.31 (Zimbabwe), para. 145.36 (Congo), para. 145.37 (Gabon), para. 145.38 (Iceland), para. 145.39 (India), para. 145.57 (Mexico), para. 145.89 (Ghana), para. 145.90 (Italy), para. 146.90 (Austria), para. 147.119 (Republic of Korea), and para. 147.44 (Burkina Faso), and A/HRC/49/13/Add.1. JS2 made recommendations (pp. 8–9). See also JS9, p. 10. JS9 made recommendations (p. 11); JS10, paras. 64 and 76. JS10 made a recommendation (para. 89); and JS12, paras. 14, 32, 34 and 38, referring to A/HRC/49/13, para. 145.90 (Italy). JS12 made recommendations (para. 39(a) and (b). See also GERG, paras. 16 and 20. GERG made a recommendation (para. 22); and JS26, p. 3. JS26 made recommendations (paras. 1.3.1–1.3.3).

[115] Ibid., para. 22. JS2 made recommendations (p. 10) See also JS3, paras. 36 and 37. JS3 made recommendations (p. 13). See also JS30, para. 39. JS30 made recommendations (paras. 54 and 55).

[116] JS25, p. 1. See also recommendation made by JS26 (para. 2.3.3).

[117] JS2, para. 12, referring to A/HRC/49/13, para. 145.90 (Italy), para. 145.99 (Spain), para. 146.7 (Lesotho), para. 146.9 (Austria), para. 147.44 (Burkina Faso), para. 147.109 (Uganda), para. 147.117 (Finland), para. 147.122 (Australia), para. 147.123 (Belgium), para. 147.124 (Canada), para. 147.125 (Ireland), para. 147.126 (Malawi), para. 147.127 (Mexico), para. 147.128 (Norway), para. 147.129 (Slovenia), and para. 147.130 (Germany), and A/HRC/49/13/Add.1. JS2 made recommendations (p. 9). See also ECLJ, paras. 17–20. ECLJ made a recommendation (para. 21); EF, para. 22; ERF, pp. 5–6. ERF made a recommendation (p. 6).); JS10, para. 46. JS10 made a recommendation (para.52); JS12, paras. 32 and 34, referring to A/HRC/49/13, para. 145.90 (Italy). JS12 made a recommendation (para. 39(a); RVT, para. 14; JS19, p. 5. JS19 made recommendations (p. 5); JS24, paras. 3 and 13. JS24 made a recommendation (para. 14(a); JS25, p. 4; and JS29, paras. 32 and 33.JS29 made a recommendation (para. 37).

[118] GERG, paras. 14 and 18, referring to Rebecca Gyumi v Attorney General Miscellaneous Civil Case No.5 of 2016. The appeal was dismissed – see Attorney General v. Rebeca Gyumi (2019). GERG made a recommendation (para, 22 (B). See also JS26, p. 4. JS26 made a recommendation (para. 2.3.4).

[119] JS14, para. 21. JS14 made a recommendation (para. 24(b).

[120] JS10, paras. 25 and 43. JS10 made recommendations (paras. 32 and 51). See also JS14, para. 20. JS14 made a recommendation (para. 24(a); JS24, para. 24. JS24 made a recommendation (para. 25(a); and JS25, pp. 2 and 5.

[121] JS10, paras. 43 and 44. JS10 made a recommendation (para. 51).

[122] JS19, p. 7. JS19 made recommendations (p. 7).

[123] JS9, p. 12. JS9 made recommendations (p. 13).

[124] KOO, paras. 2 and 5. KOO made a recommendation (para. 8(1). See also JS18, p. 1; JS22, paras. 4 and paras. 13; and JS23, paras. 19 and 24. JS23 made a recommendation (para. 82).

[125] JS14 made recommendations (paras. 28 (b) and (c).

[126] RVT, para. 11. RVT made recommendations (pp. 7–8).

[127] JS23, para. 5.

[128] Ibid., para. 112.

[129] JS18, p. 3. JS18 made a recommendation (p. 8).

[130] JS7, paras. 46 and 47. JS7 made recommendations (paras. 61 and 62). See also EF, paras. 30–32. EF made a recommendation (para. 42); KOO, para. 6.1; JS18, paras. 10 and 14; RVT, para. 11 RVT

made recommendations (pp. 7–8); JS19, p. 8. JS19 made recommendations (pp. 8–9); JS22, para. 16; JS23, paras. 26 and 29; and JS26, p. 13. JS26 made recommendations (pp. 13–14).

131 JS22, paras. 21, 22, 24 and 28.

132 JS4 referred to sections 154–157 of the Penal Code, Cap 16 R.E 2023.

133 JS4 referred to sections 133 and 134 of the Zanzibar Penal Act, 2018.

134 JS4, p.3. JS4 made recommendations (p. 19, para. 7.1). See also JS11, para. 16. JS11 made a recommendation (para. 31); and JS28, p. 14.

135 JS16, paras. 8, 10, 11, 15, 25, 28, and 30. JS16 made recommendations (paras. 27–33).

136 SU, para. 34. SU made recommendations (para. 26–32).

137 ERF, p. 3. ERF made recommendations (p. 6).

138 JS14, paras. 17 and 18. JS14 made recommendations (para. 19). See also RVT, para. 14; and JS26, p. 5. JS26 made a recommendation (para. 2.3.7).